

		<i>Seventh Cause of Action for Injunctive Relief</i> Respondents contend this cause of action fails because it is redundant, given that the CPRA explicitly authorizes a petitioner to seek a writ of mandate to compel the inspection of public records, and it is uncertain. Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Here, the Petition is not incomprehensible. Thus, the Demurrer based on uncertainty is OVERRULED. However, “[i]njunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief.” (<i>Allen v. City of Sacramento</i> (2015) 234 Cal.App.4th 41, 65.) Thus, Petitioner’s seventh cause of action is improper. Rather than asserting a separate cause of action for injunctive relief, Petitioner may obtain the requested injunction if she prevails on her first cause of action for violation of the CPRA. Thus, the Demurrer to the seventh cause of action is SUSTAINED without leave to amend. <i>Eighth Cause of Action for Statutory Penalties and Sanctions</i> Respondents argue this cause of action misstates the remedies available under Government Code section 7923.15, which does not provide for a separate cause of action. Respondents further argue that Petitioner is not entitled to recover attorney’s fees as a pro se litigant. Section 7923.15 provides that a requester who prevails in litigation shall be awarded costs and reasonable attorney’s fees. While Petitioner may be entitled to an award of costs if she prevails in this litigation, this is a remedy and not a separate cause of action. Thus, the Demurrer to the eighth cause of action is SUSTAINED without leave to amend. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
107	Holl vs. ADK Bancorp, Inc., 22-01257212	<i>Call Clerk for Tentative Ruling</i>
108	Falevich vs. Hyundai Motor America, 26-01564960	Defendant Hyundai Motor America (“Defendant”) moves to compel arbitration pursuant to arbitration agreements contained in Plaintiff’s Owner’s Handbook & Warranty Information and the Bluelink Connected Services Agreement. Plaintiffs Vladislav Falevich and Olga Falevich (“Plaintiffs”) oppose the motion.